

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

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MARTY HILL,

SUMMONS

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

-against-

The basis of venue is:
Statutory

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER FREEMAN AND
POLICE OFFICER LIRIANO,

Plaintiff resides at:
525 East 145 Street, 4C
New York, NY 10454

Defendants.

County of New York

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To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 10, 2015



MORDECAI T. SCHWARTZ
SCHWARTZ GOLDSTONE & CAMPISI, LLP
Attorneys for Plaintiff(s)
MARTY HILL
90 Broad Street, Suite 403
New York, New York 10004
212-962-2800
Our File No. 4658

TO: CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

Police Office Freeman
One Police Plaza
New York, NY 10038

Police Officer Liriano
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MARTY HILL,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER FREEMAN AND
POLICE OFFICER LIRIANO,

Defendants.

Index No.:
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**VERIFIED
COMPLAINT**

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Plaintiff, by his attorneys, **SCHWARTZ GOLDSTONE & CAMPISI, LLP**, complaining
of the Defendants, respectfully alleges, upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF MARTY HILL**

1. At the time of the commencement of this action, Plaintiff was a resident of the County of Bronx, State of New York.
2. This action falls within one or more of the exemptions set forth in CPLR §1602.
3. The cause of action alleged herein arose in the County of Bronx, State of New York.
4. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
5. That at all times hereinafter mentioned, the defendant NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "POLICE", was and still is an agency of the defendant CITY.

6. That at all times hereinafter mentioned, the defendant POLICE OFFICER FREEMAN, hereinafter referred to as "FREEMAN", was and is a police officer, employed by the defendant POLICE.

7. That on and prior to June 6, 2014, the aforesaid defendant FREEMAN was employed by the defendant POLICE and was assigned to the County of Bronx, City and State of New York.

8. That at all times hereinafter mentioned, the defendant POLICE OFFICER LIRIANO, hereinafter referred to as "LIRIANO", was and is a police officer, employed by the defendant POLICE.

9. That on and prior to June 6, 2014, the aforesaid defendant LIRIANO was employed by the defendant POLICE and was assigned to the County of Bronx, City and State of New York.

10. On June 6, 2014, and at all times mentioned herein there existed a premises located at East 145th Street and St. Anns Avenue, in the County of Bronx, City and State of New York.

11. That on or about June 6, 2014, while the plaintiff MARTY HILL was lawfully present in the vicinity of aforesaid location, he was caused to be negligently, intentionally, wrongfully, willfully, maliciously and with gross negligence, physically detained, assaulted, beaten, battered and falsely arrested by Defendants CITY, POLICE, FREEMAN and LIRIANO, and was caused to sustain severe and permanent injuries.

12. That on or about June 6, 2014, the plaintiff MARTY HILL, while lawfully present in the vicinity of aforesaid location, was without just cause or provocation, and with excessive force, and without investigation, placed under arrest by defendants, their agents, servants and/or employees.

13. At the aforementioned place Plaintiff was falsely arrested and illegally imprisoned for a period of more than 24 hours even though defendants knew or should have known that there was no merit to the arrest and incarceration and said arrest and incarceration were malicious and illegal and caused by reason of the negligence, recklessness and maliciousness of Defendants CITY and POLICE, by its agents, servants, employees and/or licensees.

14. Said arrest was effectuated by Police Officers of the 40th police precinct, in the County of Bronx, City and State of New York.

15. That on or about June 6, 2014, a criminal complaint was issued by defendants, their agents, servants, and/or employees, and in particular, by defendant POLICE, and a criminal action against the plaintiff was commenced.

16. That the criminal matter was terminated in favor of the plaintiff and that it was dismissed and the records sealed in the Criminal Court of the City of New York, County of Bronx.

17. That prior hereto on September 2, 2014, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

18. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

19. The aforementioned occurrence took place due to the negligence of the Defendants, their agents, servants, employees and/or licensees, acting within the scope of their authority, within the scope of their employment and in the furtherance of their agency.

20. The aforesaid occurrence and the results thereof were due to and caused by the joint, several and concurrent negligence of the Defendants and their agents, servants, employees and/or licensees in negligently, carelessly and recklessly causing, allowing and/or permitting the Plaintiff to be willfully, maliciously and with gross negligence and excessive force, physically detained, assaulted, battered, and falsely arrested.

21. No negligence on the part of the Plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

22. That by reason of the foregoing, Plaintiff was caused to sustain severe and serious personal injuries and other consequential damages, plaintiff's health was impaired, plaintiff suffered

great mental distress, his reputation and character were injured, his earning power was permanently impaired, large sums of money were expended by plaintiff in his defense.

23. That as a result of the foregoing, Plaintiff MARTY HILL was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF MARTY HILL**

24. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

25. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the Defendants and their agents, servants, employees and/or licensees, all of whom were acting within the scope of their authority, within the scope of and in furtherance of their employment and in furtherance of their agency.

26. The acts complained of herein constitute intentional infliction of emotional harm and distress.

27. That by reason of the foregoing, Plaintiff was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff was and will continue to be rendered unable to perform his normal activities and duties and in consequence has sustained a loss therefrom.

28. That as a result of the foregoing, Plaintiff MARTY HILL was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF MARTY HILL**

29. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

30. The acts complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society.

31. That by reason of the foregoing, Plaintiff was caused to sustain severe and serious personal injuries and other consequential damages, plaintiff's health was impaired, plaintiff suffered great mental distress, his reputation and character were injured, his earning power was permanently impaired, large sums of money were expended by plaintiff in his defense.

32. That as a result of the foregoing, Plaintiff MARTY HILL was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF MARTY HILL**

33. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

34. That on or about June 6, 2014, and while in the custody of the defendants in the County of Bronx, New York, plaintiff was intentionally pushed, punched, assaulted, violated, humiliated and handcuffed by the defendants FREEMAN and LIRIANO, acting within the scope of their employment and authority in such matter as to knowingly cause injury to plaintiff.

35. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants, within the scope of their employment, and in particular defendants FREEMAN and LIRIANO, intentionally, willfully and maliciously assaulted and battered the plaintiff in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and caused such battery in and about his head, neck, body and limbs.

36. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the Defendants and their agents, servants, employees and/or licensees, all of whom were acting in the scope of their authority and within the scope of and in furtherance of their employment and in furtherance of their agency.

37. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without any probable or reasonable cause, the plaintiff was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff was and will continue to be rendered unable to perform his normal activities and duties and in consequence has sustained a loss therefrom.

38. That as a result of the foregoing, Plaintiff MARTY HILL was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF MARTY HILL**

39. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

40. That the defendants, their agents, servants and employees failed to adequately and properly train, supervise, discipline or in any other way control the behavior of their personnel and in particular defendants FREEMAN and LIRIANO, in their hiring practices in the exercise of their functions, in that they had a reckless lack of cautions regard for the rights of the public, including plaintiff, and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

41. That the failure of the defendants, their agents, servants and employees to adequately and properly train, supervise, discipline or in any other way control the behavior of their personnel in the exercise of their functions, is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the danger of harms and injury to the public, including plaintiff.

42. That the injuries sustained by the plaintiff resulted from the negligence of the defendants in employing and continuing to employ, without adequate training and supervision, employees of violent character, unsuitable temperament and insensitive disposition.

43. That by reason of the foregoing, Plaintiff was caused to sustain severe and serious personal injuries and other consequential damages, plaintiff's health was impaired, plaintiff suffered great mental distress, his reputation and character were injured, his earning power was permanently impaired, large sums of money were expended by plaintiff in his defense.

44. That as a result of the foregoing, Plaintiff MARTY HILL was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against Defendants in an amount to be determined upon the trial of this action, together with the costs and disbursements of this action.

Dated: New York, New York
August 10, 2015

Yours, etc.



MORDECAI T. SCHWARTZ
SCHWARTZ GOLDSTONE & CAMPISI, LLP
Attorneys for Plaintiff(s)
MARTY HILL
90 Broad Street, Suite 403
New York, New York 10004
212-962-2800

ATTORNEY'S VERIFICATION

MORDECAI T. SCHWARTZ, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at SCHWARTZ GOLDSTONE & CAMPISI, LLP, attorneys of record for Plaintiff, Marty Hill. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff does not reside in the county wherein I maintain my offices.

DATED: New York, New York
August 10, 2015



MORDECAI T. SCHWARTZ